

Smt. Badami Devi v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 5 April 2023 · Writ - C No. 8797 of 2023 · **Writ disposed after theft recovery was withdrawn; fresh Code order left to the licensee.**

HEADNOTE

Writ against a theft-recovery citation disposed after the Electricity Department withdrew the citation and undertook to pass a fresh order under the U.P. Electricity Supply Code, 2005. An earlier order had restrained coercive steps. The dues were not adjudicated.

FACTUAL SUMMARY

Smt. Badami Devi moved the Allahabad High Court against the State of Uttar Pradesh and four others to challenge a recovery citation dated 10 October 2022, issued by respondent no. 3, for electricity dues in a theft case. On 21 March 2023 the Court adjourned the writ for instructions and directed that no coercive step be taken against her. On 5 April 2023 the Electricity Department told the Court that the recovery had been withdrawn and that a fresh order would follow the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

withdrawal of theft recovery; fresh order under the Code

HOLDING

The writ challenging the recovery citation dated 10 October 2022 for electricity-theft dues was disposed of on the Electricity Department's statement that the recovery stood withdrawn and that a fresh order would be passed following the procedure prescribed under the U.P. Electricity Supply Code, 2005, with liberty to the respondents to do so. No Code clause was construed and the dues were not decided. ¶ 2

FLAG Supply Code cited without a clause number.

PRINCIPLE TAGS

theft-recovery-withdrawn-writ-disposed Where the licensee withdraws the impugned theft-recovery citation and states that a fresh order will follow the U.P. Electricity Supply Code, 2005, the writ is disposed with that liberty and the dues remain undecided. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY-THEFT DUES DEMANDED BY THE CITATION DATED 10 OCTOBER 2022 WERE LAWFULLY ASSESSED OR RECOVERABLE

The citation was withdrawn. A fresh order under the Supply Code was left to the licensee. ¶ 2